



Notification Waiver Determination

Apax Funds – Techoraco Limited and Institutional Investor LLC

Acquisition	Assemble UK Bidco Limited and Assemble US Bidco Inc (the Acquirers) applied for a notification waiver in respect of their proposed acquisition of 100% of the issued share capital of Techoraco Limited (Techoraco) and Institutional Investor LLC (Institutional Investor) (together, the Targets), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 August 2026

Parties to the Acquisition	The Acquirers are special purpose vehicles which are wholly owned by Assemble Midco Limited, a UK holding company that is ultimately owned by investment funds advised by Apax Partners LLP (Apax). Apax is a UK limited liability partnership based in London, and the parent company of a number of entities which provide investment advisory services to private equity funds in a range of industry sectors (the AP Funds). Techoraco is a business-to-business (B2B) in-person events and insights business focussed on the digital infrastructure sector, including data centres, fixed connectivity, wireless and satellite connectivity, and related software and hardware infrastructure. Institutional Investor is a B2B membership, in-person events and market intelligence business focussed on the institutional investment sector, including by connecting asset managers and allocators. The Targets do not have a local presence, office, or employees in Australia, and do not organise events in Australia. They have less than 10 Australian corporate customers who subscribe to the Targets' services and/or attend the Targets' events which take place outside of Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. The Targets have a small Australian presence and there is no horizontal overlap or vertical relationship between Apax

	(including its connected entities and the AP Funds’ controlled portfolio companies) and the Targets in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. There is no horizontal overlap or vertical relationship between the Targets and any of the AP Funds’ controlled portfolio companies that are active in Australia. For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**